

**Personal appearance and appearances via ZOOM are available.**

**Probate Calendar for Friday, July 10, 2026**

**9:00 a.m. in Department Paso 2, with Judge Michael C. Kelley (by Michele L. Rowe, Judge Pro Tem) presiding**

| No.                                                                                       | Case Number | Case Name                     | Type of Matter                        | Probate Notes                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
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| <b><u>The following matters are OFF CALENDAR/ DISMISSED/ TERMINATED or CONTINUED:</u></b> |             |                               |                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 14                                                                                        | 26PR-0178   | In Re: Josue Baranda-Gallardo | Minors Compromise<br>Filed 05/26/2026 | <p>CONTINUED LIST: <i>The matter is continued to October 9, 2026 at 9:00 a.m. in P2. All additional materials are due by September 3, 2026. The following is noted:</i></p> <ol style="list-style-type: none"><li>1. <u>Compromise generally.</u> <i>The Petition generally appears ready for approval. Nevertheless, as the Pooled Trust contains many issues as noted below, a continuance of the entire Petition is needed to complete the full approval.</i></li><li>2. <u>Pooled Trust.</u><ol style="list-style-type: none"><li>a. <u>Joinder Agreement.</u><ol style="list-style-type: none"><li>i. <i>The Joinder Agreement, item 5 and the fee table do not comply with California Rules of Court rule 7.903, subsection (c)(8). The Order of this Court must specifically note that the Court is not agreeing to any fees at this time, but will award reasonable fees at the time of the first account review or upon other Petition.</i></li><li>ii. <i>The Court requires a completed, but unsigned copy of the Joinder Agreement for review. The Joinder</i></li></ol></li></ol></li></ol> |

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|  |  |  |  | <p><i>Agreement provided does not disclose the remainder beneficiary designation or the beneficiary advocate/ successor advocate names. It does not complete anything other than the fee schedule. It is unclear what the Court would be approving based on this document. The proposed completed form, with all nominations proposed, is needed.</i></p> <p><i>b. Master Trust</i></p> <p><i>i. Clarification is needed on the Trust sections prohibiting the beneficiary from amending the Trust, even with court approval. These sections appear throughout the Master Trust numerous times with firm language that the Trust Beneficiary may not, under any circumstances, amend the trust. California Rules of Court, rule 7.903 subsection (c)(2) only prohibits modification or revocation without Court approval. Thus, it appears this Trust prohibits the beneficiary from even Petitioning the Court for amendment or modification, which is not the standard required by the California Rules of Court. It is noted other sections of the Master Trust discuss this Court approval process under the Rules of Court, for the Trustee or Non-Profit, but the prohibition on even a Petition by the Trust beneficiary is not discussed.</i></p> |
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|  |  |  |  | <p><i>Clarification is needed in some way to note that the Court may be Petitioned to amended or modify, by the Trust Beneficiary.</i></p> <p><i>ii. Sections 6.8 and 9.8 appear to allow for full modification of this trust, for transfer to another trust, without approval by a Court. This appears to be in violation of California Rules of Court, rule 7.903, subsection (C)(2). This section should be deleted or modified to require Court pre-approval. It is noted that section 12.4 indicates that court supervised trusts required court approval, but it is not clear by the balance of the terms that this provision supersedes and controls over other contradictory provisions.</i></p> <p><i>iii. Sections 6.2, 7.4. D., 7.6, 9.2, 9.5.D, and 10.6 all discuss compensation for attorneys and the Trustee. Nevertheless, not all these sections require Court review under Cal. Rules of Court, rule 7.903, subsection (c)(8) before payment. It noted a few other sections do specifically limit fees based on review, but at least one requires the set-up fees be paid, without any Court oversight or approval to determine just and reasonableness. Modification is needed.</i></p> <p><i>iv. Sections 10.1 (Trust Administrative powers) and section 11.3 appear to conflict. The provisions under</i></p> |
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|  |  |  |  | <p><i>section 10.1 provide investment powers within the terms, and not just administrative provisions. Revision will be needed.</i></p> <p>v. <i>Section 10.5 third paragraph, last line, the Periodic payments “may” be permitted, not “shall”. The word “shall” should be replaced to match the statue and Rules of Court.</i></p> <p>vi. <i>Section 10.11 subsection B should be modified to state that the Trustee must not borrow, lend money, give security, lease, convey or exchange any property of the estate without prior authorization of a Court period. The \$20,000 or greater limit should be removed. These powers should not be exercised without Court approval under the investment authorities provided in Probate Code section 2574.</i></p> <p>vii. <i>Section 13.1 should also indicate that venue for this subtrust/ Beneficiary IBA is in San Luis Obispo County. Any change of venue must be completed via a noticed Petition and Order of this Court, prior to said change.</i></p> <p>c. <i>Bond. Bond of \$95,544.39 appears necessary based on section 10.4 and California Rules of Court, rule 7.903 subsection (c)(5). Nevertheless, it is unclear from the materials provided if the Trustee is claiming it is exempt from bond as a corporation? The Petition is unclear what is requested.</i></p> |
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|                             |           |                                       |                                                                                        | d. <i>A revised proposed order is needed incorporating the terms of the Trust and any orders made for the establishment of the Trust.</i>                                                                                                                                                                                                                                                                                                                                                                                                                     |
| <b><u>APPROVED LIST</u></b> |           |                                       |                                                                                        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 7                           | 25PR-0216 | Guardianship of:<br>Nathaniel Galvan  | Petition Filed 7/3/2025<br>- Guardianship<br>PERSON; Cont'd<br>10/24/25 & 2/27/26      | APPROVED LIST: <i>It is recommended the Petition be approved. The Court ordered on February 27, 2026 for the minor's mother to file a written objection to the Petition by April 30, 2026. Nothing has been filed. It is recommended the Court deem the Objection waived pursuant to California Rules of Court, rule 7.801.</i>                                                                                                                                                                                                                               |
| 10                          | 25PR-0350 | Conservatorship<br>of: Alex Golden    | Petition Filed<br>10/15/2025 - Limited<br>Conservatorship<br>PERSON; Cont'd<br>2/27/26 | APPROVED LIST: <i>It is recommended the Petition be approved, subject to the following: It is recommended that Court-Appointed Counsel's request for attorney's fees of \$396 and costs of \$5.95 be approved, to be paid by San Luis Obispo County.</i>                                                                                                                                                                                                                                                                                                      |
| <b><u>HEARING LIST</u></b>  |           |                                       |                                                                                        |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 1                           | 15PR-0272 | Conservatorship<br>of: Taylor Herrick | Order to Show Cause<br>re: Bond (Increased)                                            | HEARING LIST: <i>Zoom or personal appearance is required. It is noted that a Rider was submitted on June 10, 2026, but it does not correct the issue with the Obligee as discussed at the last hearing. The Court also does not have a copy of the master bond in the file, for which this bond rider is based. It is likely that the original bond also has the incorrect Obligee. The original bond no. 62773059 is needed. The Obligee should be as stated under Probate Code section 2320 (b) "all persons interested in the conservatorship estate".</i> |
| 2                           | 20PR-0275 | Guardianship of:<br>Krew Sims-Pierce  | Petition Filed<br>10/30/2024 -                                                         | HEARING LIST: <i>Zoom or personal appearance is needed. The parties indicated at the hearing on</i>                                                                                                                                                                                                                                                                                                                                                                                                                                                           |